IN THE SUPREME COURT OF INDIA AT NEW DELHI

C.C.C. No. /2018

In the matter of :-

Smt. Rohini Sindhuri Dasari,
aged 33 years,
w/o. Sudhir Reddy,
Deputy Commissioner,
Hassan District, Hassan,
presently residing at Residence of
Deputy Commissioner,
Hassan — Petitioner/ Complainant

And:

1. Dr. K.B. Suresh,
Judicial Member,
Central Administrative Tribunal,
Indiranagar,
Bengaluru

2. Sri. A.A. Pradhan,
Administrative Member,
Central Administrative Tribunal,
Indiranagar,
Bengaluru — Respondents

MEMORANDUM OF CONTEMPT OF COURT PETITION UNDER ARTICLE 129 OF THE CONSTITUTION OF INDIA

To,

The Hon'ble Chief Justice of India,
and his Companion Justices of the
Hon'ble Supreme Court of India,
New Delhi.

The petitioner/complainant most respectfully submits as follows:

1. Though the petitioner quite genuinely feels highly pained to seek appropriate action being taken against the respondents herein, since the majesty of law and the dignity of this highest constitutional court of the country would require to be guarded, protected and upheld lest the Rule of Law would be a mockery and Article 141 of the Constitution of India might, in such a situation become a dead letter. With this prelude which is apt, expedient and necessary in the context of the case, the petitioner respectfully submits bringing to the kind notice of this Hon'ble Court the gross and deliberate contempt that the respondents have knowingly committed even as paragraphs 62 to 64 of the order dated 17.4.2018 a copy of which is filed herewith as **ANNEXURE.....** would demonstrate.

2. For the sake of brevity, the findings and observations contained in the aforementioned paragraphs of the order are extracted below:

"62. We have examined the two judgments which we have annexed of constitutionalism, the idea of sub-silencio and that of per in curium. The Kesavananda Bharati's case and Bommai's case in which our Mr. Subramanya Jois himself is a part proclaims and explains the basic feature of Constitution and Constitutionalism. Stifling of democracy in any way is rejected outright by these judgments. Therefore it is stipulated at the bar that these two judgments i.e. Prakash Singh's and TSR Subramanian's judgments is hit by both these principles.

63. Shri. Subramanya Jois vehemently disagrees and stipulates that once we say that a judgment is wrong we hold ourselves open to threats of violence.

64. It may be so. Sacrifice we must, if we must sacrifice. We are judges and called upon to uphold the truth in whatever way we feel like. If we suffer for it, let us suffer. But we will not be wanting the need to judge firmly and in our humble view correctly and we find that without **a constitutional amendment there cannot be a creation of Civil Services Board which will constitute a parallel and alternate Government**. We find that these principles had been enunciated in Kesavanana

Bharati's case and Bommai's case and therefore these two judgments are hit by principles of per in curium".

3. From a reading of the contents of the said order as extracted supra, it is quite clear and manifest that, being fully aware and conscious of the legal and factual position that ignoring with impugnity or sitting in judgment over the verdicts of this Hon'ble Court and comments on and questioning the sound judicial wisdom of this Hon'ble Court would lead to adverse consequences to the authors of this order – the respondents herein, have chosen to do it anyway. Such observations having been made besides dismissing the cause brought by the complainant before the Tribunal.

4. The complainant is an encadred officer belonging to the Indian Administrative Service. She is presently holding a cadre post as the Deputy Commissioner of Hassan District, Hassan in the State of Karnataka. Various committees having been constituted by the Central Government as regards tenure, protection to be provided for and prescribed in favour of and in respect of such encadred officers, this Hon'ble Court has in its landmark ruling renderd in the case of ***TSR Subramanian Vs. the Union of India and others reported in 2013 (15) SCC page 732,*** that tenure protection should be provided for and that such directions having been issued in paragraphs 35 and 39 in particular of

the said verdict following yet another celebrated rulings of this Hon'ble Court in the case of ***Prakash Singh Vs. Union of Indian vide 2006 (8) SCC page 1,*** which verdict rendered in the context of similar protection to the officers borne on the Indian Police Services having been followed in TSR Subramanian's case.

5. For the reasons contained in the said verdict and an outer-limit of 3 months having been prescribed by this Hon'ble Court on 31.10.2013 for complying with the said mandate, the Central Government has, in exercise of its statutory power under Section 3 (1) of the All India Services Act 1951 (Central Act No.61/1951) framed rule called the Indian Administrative Service (Cadre) Amendment Rules 2014 and for an immediate reference thereto the full text of the said rules is filed herewith as **ANNEXURE……..** It can be seen therefrom that the said statutory rules have been framed by the Central Government in consultation with the Government of the State concerned. The State of Karnataka also being one of the consulting parties to the framing of the said rule. It is a matter of record that the State of Karnataka, amongst others had also participated in the proceedings culminated in the final verdict rendered in TSR Subramanian's case. In principle the State had also agreed that tenure protection ought to be provided to the encadred officers, for preventing irrational, arbitrary and unscheduled transfers of such officers. The reasons for providing tenure protection have been quite clearly laid down in the said rulings. For an immediate reference thereto the

full text of the said rulings is filed herewith as **ANNEXURE-.....**

6. The State of Karnataka made an abortive attempt to constitute the Civil Service Board, directed by this Hon'ble Court to be constituted in each State. However, it has not given effect to the same.

7. Without and before constituting such a Board as has been mandated by this Hon'ble Court in the said ruling, and without the recommendations of such a Board the State or Union would not get clothed with any authority in law to effect transfer and such officers, no doubt are susceptible to premature and unscheduled transfers only under the 3 enumerated situation viz., promotion, retirement or deputation outside the State or training exceeding two months, in the State of Karnataka, no such Board having been constituted as asserted by the State, and vindictively and prematurely the complainant was ordered to be transferred from the post/office of the Deputy Commissioner, Hassan District, Hassan and to place her services at the disposal of KSIIDC. Such an order was passed on 22.1.2018, **prematurely** in about 6 months of her being transferred to and reporting at Hassan as the Deputy Commissioner of the said District, a true copy of the said notification is produced herewith and marked as **ANNEXURE.....**

8. The process of General Election to the Legislative Assembly of the State have already commenced as at the said date and the complainant was a deputationist to the Election Commission by virtue of Section 28 A of the Representation of the Peoples Act 1951, not only the Chief Electoral Officer, Karnataka, but even the Election Commission of India denounced and resented the said unscheudle and premature transfer which was an affront to and was in violation of the provisions of the said enactment. They therefore addressed two letters expressing their displeasure over the malicious and arbitrary action of the Government of Karnataka copies of the same are filed herewith as **ANNEXURE-.....**respectively directing to withdraw the said transfer order dated 22.1.2018.

9. Notwithstanding the directions so issued the Government which was totally disinclined to obey the directions of the Commission and was hell bent upon showing its authoritarianism and despotic attitude towards the complainant merely kept the order dated 22.1.2018 in abeyance and did not withdraw the same. Despite being directed to withdraw, therefore the complainant had no other option than approaching the Central Administrative Tribunal, Bangalore Bench, Bangalore with an application in O.A. No.170/00103/2018 under Section 19 of the Administrative Tribunals Act, 1985, placing heavy reliance on the aforementioned verdict of this Hon'el Court in support of her contention. For an immediate reference to the contents of the

said O.A. the complainant files herewith a copy whereof as **ANNEXURE……..**

10. Whereas the first date of hearing of the aforementioned Original Application, after service of notice on the respondent-State, fixed by the Tribunal was 6.3.2018, the State which had absolutely no defence whatsoever against the challenge made by the applicant particularly in view of the said challenge having been founded firmly on the 2 rulings of this Hon'ble Court, a camouflage and a fraud on the Tribunal as also on the applicant and the public at large was dubiously articulated and engineered by the State which professed to withdraw the order dated 22.1.2018, by a notification dated 5.3.2018 a true copy thereof is filed herewith as **ANNEXURE……**the said order being an unconditional order with no reservation whatsoever made for issuance of any similar order later in point of time the Tribunal before which a memo dated 6.3.2018 was filed by the State as per **ANNEXURE……**filed herewith, the Tribunal disposed of the application by its order passed the very day that the application had become infructuous in view of the withdrawal of the notifications impugned in the proceedings.

11. The complainant who had genuine reasons to believe that the said action of the State was a camouflage for avoiding any verdict being rendered by the Tribunal, on the merits of the challenge stated so before the Tribunal and passionately pleaded for the original application being decided

on themerits thereof. The said apprehension expressed by the petitioner was refuted on behalf of the State, mentioning that there was no such move to transfer her over again.

12. As had been quite genuinely apprehended by the petitioner who had weighty reasons to think so, yet another order of transfer was passed the very next day, viz., on 7.3.2018 itself – even before the ink on the order dated 6.3.2018 of the Tribunal had dried up. A true copy of the said order is filed herewith as **ANNEXURE.....**Aggrieved by the said order dated 7.3.2018 the petitioner filed yet another original application in O.A. No.170/00167/2018, on diverse grounds including the ground of malice and fraud played on the Tribunal, on the public at large and on the petitioner also.

13. It is respectfully submitted that the solitary question that had been raised in the proceedings before the Tribunal was as to the illegality of the order dated 7.3.2018, having been maliciously passed a day after the earlier order was withdrawn and the said order having been passed without the recommendations of the Civil Services Board, and prematurely in violation of The Indian Administrative Service (Cadre) Amendment Rules 2014, and also the DOPT circular issued by the Central Government, the Tribunal has travelled too far and far beyond the said question involved in the proceedings, though it ought to have restricted the adjudicatory process to the controversy raised before it rather than generalizing it. It

had a very limited *lis* before it. A reading of the final order dated 17.4.2018, the passing of which is contumacious would show that the directions issued in the said order that the Tribunal definitely had some anxiety on its part but it was necessary to remember that directions could not be issued solely out of concern, and that they have to be founded on certainly legally justifiable principles that have roots in the laws of the country. In this regard the petitioner quite respectfully invite the kind attention of this Hon'ble Court in the case of State of Uttar Pradesh and others Vs. Subash Chandra Jaiswal and others reported in 2017 (5) SCC page 163 paragraphs 14 to 23 thereof being relevant in the context.

14. The State filed its Reply to the O.A. as per **ANNEXURE.....** The stand taken by the State was refuted by the complainant who filed a Rejoinder Statement as per **ANNEXURE.....**which is a copy filed herewith as **ANNEXURE.....**

15. Thereupon the petitioner even filed her written arguments supported by the various rulings of this Hon'ble Court, mentioned therein. A copy of the said written submission is filed herewith as **ANNEXURE.....**

16. It is respectfully prayed that the contents thereof may kindly be read and treated as ***mutatis mutandis*** as a part

and parcel of this petition so as to keep up brevity and avoid repetition of the contents thereof.

17. The Tribunal which has set down the proceedings for pronouncement of its order made a short-work of the matter and passed a laconic and cryptic "order" which contained no reasons, no reference to the arguments of the parties and despicably no reference even to the two binding verdicts of this Hon'ble Court. The petitioner therefore questioned the same before a Division Bench of the Hon'ble High Court of Karnataka in W.P. No.13064/2018.

18. Finding that the order was wholly unsustainable though a feeble attempt was made by the State to sustain the same, the Hon'ble High Court which disapproved the said order and the manner in which the same had been passed quashed the said order and remitted the proceedings, back to the Tribunal for re-consideration of the matter, in accordance with law. The law in the context apparently would mean interalia, the binding ratio and precedent laid down by this Hon'ble Court in *Prakash Singh Vs. Union of India and TSR Subramanian's case supra.*

19. The Tribunal which felt agitated over its order having been set-at-naught called on the application for hearing in the chamber of the judicial member where Government Officers, the Government Counsel and the Additional Advocate General had already assembled before the petitioner's counsel was

told that the members of the Tribunal had assembled in the chamber for re-hearing of the Original Application. The judicial member asked the said counsel as to how such rulings as have been rendered in Prakash Singh's case could be rendered by this Hon'ble Court to which the counsel replied immediately that as a sub-ordinate Tribunal, it was judicial discipline to follow the State rulings as binding precedent under Article 141 of the Constitution of India; and neither the Tribunal nor any court or tribunal in the country could comment on or question the sound judicial wisdom of this Hon'ble Court; and that consequence of not obeying the same or commenting adversely on the said verdicts would constitute a serious contempt of this Hon'ble Court and that the learned counsel would abhor it, fear it and would not be party thereto.

20. He also expressed his severe anguish that the Tribunal which was of the firm opinion that according to it the rulings of this Hon'ble Court referred to above, were it by *sub-silencio* and *in curium juris*, the petitioner's counsel in unequivocal terms submitted with utmost respect that the Tribunal could not say so particularly in the wake of the ruling of this Hon'ble Court reported in 2017 (7) SCC page 1 as in re: Hon'ble Sri. Justice C.S. Karnan. He also further submitted that adversely commenting on the correctness of the rulings of the Hon'ble Supreme Court and sitting in judgment over the sound judicial wisdom of this Hon'ble Court would constitute a serious inroad into the plenary judicial authority of the apex court and would therefore constitute a serious contempt under Section 2 (c) of

the Contempt of Courts Act, 1971, the judicial member said that he knew the same but the same would not deter him from holding that this Hon'ble Court could not, according to him render the said ruling without an amendment to the Constitution of India and that the said judgment are a threat to "democracy" and the freedom of the Executive Government.

21. To the same thereafter the judicial member said that he would find ways to overcome the said rulings, that they are hit by sub-silencio and per in curium the petitioner's counsel found it impossible to substitute to such contumacious view.

22. In the wake of such a farsical hearing the petitioner filed her supplementary written submissions, a copy of which is filed herewith as **ANNEXURE.....** Referring to and quoting passages from the various rulings including the aforementioned rulings of this Hon'ble Court.

23. Apart from failing to follow the same the Tribunal has, extracted hereinbefore, consciously questioned the sound wisdom of this Hon'ble Court and has stated that without any amendment to the Constitution of India directions to constitute a Civil Services Board could not have been issued the same virtually amounts to sitting over the judgment of this Hon'ble Court and of substituting the contumacious and subjective opinion of the respondents, by disregarding,

disrespecting and setting at naught the aforementioned rulings.

24. What is quite strange, shocking and bewildering is that the Rules erroneously called "Circular" in Tribunal orders issued by the DOTP of the central Government in implementation of the verdicts mentioned above has been professedly quashed by the Tribunal, though the same was not under challenge; the Central Government was not heard in the matter and no arguments was addressed in that regard by any party to the proceedings.

25. In so far as the final verdict of the dismissal of the application is concerned the petitioner has, filed a writ petition in the Hon'ble High Court of Karnataka questioning the same on many grounds including the ground that her case which is fully covered by the rulings of this Hon'ble Court and could not have been dismissed and that the order of the Tribunal would, therefore, richly commend being quashed.

26. This petition is presented in the backdrop of what has been stated supra since the majesty of law and the supremacy of the highest constitutional court, are in jeopardy on account of the said order of the Tribunal, which quite clearly notices and states that sitting in judgment over the wisdom of this Hon'ble Court would lead to serious penal consequences and that the constituents of the Bench, yet are ready to face the same.

27. No other petition on the same cause of action has been filed by the petition in this Hon'ble Court in any Court of law.

28. No other petition on the same cause of action has been filed by the petition in this Hon'bel Court or in any other court of law.

MAIN PRAYER :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) initiate and take appropriate action against the respondents for the deliberate and willful contempt that they have committed as is evident from the order dated 17.4.2018 rendered in O.A. No. 170/00167/2018 on the file of the Central Administrative Tribunal, Bangalore Bench, Bangalore and punish them for contempt of this Hon'ble Court;

b) Pass such other orders as this Hon'ble Court may deem just expedient and necessary for upholding the Rule of Law, the majesty of law as also the Supremacy of this highest constitutional court of this country, in the interest of justice and equity.

New Delhi Advocate for the Petitioner
Date:

A Note:

The Text of the petition has been dictated including prayers in the petition.
The Advocate on record who would file the petition has merely to bring the petition in the prescribed format.

The counsel on record, I am sure would be aware of the decision of the Supreme Court in the case of Income Tax Appellate Tribunal Vs. V.K. Agarwal vide 1999 (1) SCC page 16 = A.I.R. 1999 S.C. page 452 followed in the case of Justice Karnan. Both these rulings would be of great assistance in the matter. The Hon'ble Supreme Court has held that it has jurisdiction to punish for contempt. The Tax Appellate Tribunal which is a National Tribunal under the Income Tax Act, 1961, the position in law does not change in the instant case where the contempt complained of is against the Central Administrative Tribunal, Bangalore Bench, Bangalore, which also is constituted under Article 323 A of the Constitution of India and the Administrative Tribunals Act, 1985.

This aspect requires to be noticed as regards maintainability as also the persons against whom the petition has to be filed.